

The Homestead Act of 1862

An Act to secure Homesteads to actual Settlers on the Public Domain
— excerpt

Directions: Read the excerpt below. Each part is numbered.

- 1** That any person who is the head of a family, or who has arrived at the age of twenty-one years, and is a citizen of the United States, or who shall have filed his declaration of intention to become such ... shall ... be entitled to enter one quarter section [160 acres] ... of unappropriated public lands ...
- 2** ... and who has never borne arms against the United States Government or given aid and comfort to its enemies ...
- 3** ... subject to preemption at one dollar and twenty-five cents [\$1.25], or less, per acre.
- 4** [Sec. 2.] ... the person applying ... shall make affidavit [a sworn promise] ... that said entry is made for the purpose of actual settlement and cultivation, and not ... for the use or benefit of any other person ...
- 5** ... and on payment of ten dollars [\$10], he or she shall thereupon be permitted to enter the quantity of land specified.

- 6 [Sec. 3.] ... no certificate shall be given, or patent [legal title] issued ... until the expiration of five years from the date of such entry ...
- 7 ... [the settler] shall prove by two credible witnesses that he, she, or they have resided upon or cultivated the same for the term of five years ...
- 8 ... [but] if ... [the settler] shall have ... abandoned the said land for more than six months at any time, then ... the land so entered shall revert to [go back to] the government.

Source: Homestead Act of 1862, 12 Stat. 392 (37th Cong., Sess. II, ch. 75); approved May 20, 1862. U.S. National Archives (RG 11). Public domain. · © 2026 TroopToTeacher Technologies LLC · Generated 2026-08-11T02:30:01Z